

responding party, the Hospital has carried this burden by showing that the requested information falls under the protection of attorney-client privilege. (Evid. Code, 954.)

The motion is denied as to RFP Nos. 71-74 as moot in light of the fact the Hospital belatedly supplemented its responses before the date of the hearing. There are procedural requirements which must be met by Plaintiffs before seeking an order compelling further responses, including a requirement for good faith meet and confer (Code Civ. Proc., §§ 2016.040, 2031.310), and a requirement for a separate statement (Cal. Rules of Court, rule 3.1345). If Plaintiffs are contending that the supplemental responses are still unsatisfactory, and that the objections are still without merit or too general, the above procedural requirements should be complied with.

However, because the motion was necessitated by the Hospital's failure to timely supplement its responses, **sanctions are imposed against the Hospital in the amount of \$975, to be payable within 15 days of the order.** "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ...the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(b).)

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 15, 2026. Moving party is ordered to give notice.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405551	GONZALEZ VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

There is no dispute that Plaintiff is the prevailing party in this action and is entitled to reasonable attorney fees. The only question to be determined by this motion is the amount of the award.

The California Supreme Court has indicated that attorney fee awards "should be fully compensatory." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) Thus, in the absence of "circumstances rendering an award unjust, an attorney fee award should ordinarily include compensation for all of the hours reasonably spent, including those relating solely to the fee." (*Id.*) However, "[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.)

Importantly, the matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should ordinarily be based upon detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours,

billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi v. Cnty. of Monterey* (2008) 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group*, 22 Cal.4th 1084, 1095.)

Work on this case was performed by four attorneys. The bulk of the attorney work was done by Eesha Dalia, an attorney who has been licensed in California for seven years and who billed between \$425 and \$440 an hour. Joshua Fennell, a partner, also provided substantial work, billing between \$510 and \$525 an hour. Two other attorneys, Wil Vollbrecht and Bobby Walker, were briefly involved in the case. And four paralegals participated in the case, billing at \$215 an hour each. The total amount of time spent on the case was 48.60 hours, for a total of \$20,563.50.

In the opposition, Ford contends that this request is excessive and claims that plaintiffs' attorneys have engaged in block billing, having vague and illogical entries, administrative and value billing, and that the hourly rates are unreasonable. In an exhibit to counsel's declaration, Ford identifies a variety of entries that it claims are either routine tasks (reviewing documents like the purchase contract, litigation questionnaire, complaint, repair orders, deposition notices, etc.), are supposedly illogical (conferring with co-counsel), or are administrative such as exchanging emails on trial dates, confirming the deposition with the client, and so on. The bulk of these tasks were billed in small increments, and however routine they are, they must be performed on every case. Nor is it illogical that, during a case that lasted over a year and a half and was not settled until a few weeks before trial, the partner and the associate on the firm met ten times to discuss case strategy. All of the challenged entries appear reasonable.

Neither the total number of hours nor the hourly rates appear unreasonable. The court regularly sees hourly rates equal to or higher than what these attorneys are claiming in cases similar to these. And for a case that came within a few weeks of trial, roughly 50 hours of work from start to finish, including attorney fees, is not unreasonable. This court more customarily sees paralegals billing at \$150 an hour than \$215 an hour, but since only 2.6 hours were billed by the paralegals total, this would suggest a reduction of \$169 from the total amount claimed.

The motion is granted, and the court awards \$22,494.50. Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 15, 2026.